

Counterfactual Order Denying Stay of Mandate

Filed: July 10, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court has considered Asterglen Freight Software, Inc.'s June 26 motion to stay mandate while it prepares a petition for a writ of certiorari, together with the appellees' opposition. Asterglen proposes to challenge the June 8 dismissal of this appeal based on the district court's incomplete Rule 54(b) certification and to seek review of whether the Court should have retained the appeal during a corrective remand.

The motion is DENIED. Asterglen has not shown that the contemplated petition presents a sufficiently substantial certiorari question or that good cause warrants further withholding of mandate. The June 8 opinion applies the express-determination requirement to an order that did not state there was no just reason for delay and did not discuss the substantial factual and monetary relationship among Count I, Count II, and the counterclaim. Dismissal did not foreclose the district court from entering a supported certification in a proper later posture.

The Court also concludes that continued district proceedings do not establish the required prejudice. The appellate judgment left the Count I ruling undisturbed and returned the matter for ordinary management of unresolved claims. This denial does not restrict Asterglen from seeking certiorari after mandate and does not address the contract merits.

Later-of date under Rule 41(b)

Denial of affirmative relief does not permit issuance by reference to the earlier calendar alone. The June 8 judgment created a June 22 rehearing deadline. No rehearing petition was filed, so the ordinary seven-day date was June 29. Asterglen filed its stay motion on June 26, before that date, and the Court denied the timely motion today, July 10. Seven calendar days after this order is July 17.

Federal Rule of Appellate Procedure 41(b) requires the mandate to issue seven days after the time for rehearing expires, or seven days after entry of an order denying a timely rehearing petition or timely motion to stay mandate, whichever is later. The clerk must therefore compare June 29 with July 17. Because July 17 is later, it is the controlling issuance date. The July 10 denial is a qualifying trigger even though the Court declined to grant a stay under Rule 41(d).

No order now supplies an affirmative stay, and no direction shortens or enlarges the seven-day interval. The clerk shall withhold mandate through July 16 and release it for issuance on July 17, 2026 unless another qualifying filing or order intervenes. The June 8 opinion and judgment remain unchanged. This timing direction is part of the present order and shall be served on all counsel.

ENTERED BY ORDER OF THE COURT